

Surendra Pratap Singh v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 20 July 2016 · WRIT - C No. 32977 of 2016 · **Writ disposed; EE directed to redress bill grievance under clause 6.5.**

HEADNOTE

A writ challenging an electricity bill is not decided on merits when clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the forum of the Executive Engineer (Distribution). Noting that the consumer had already represented, the Division Bench disposed of the petition with a direction to the EE, PuVVNL, Tagore Town, Allahabad, to look into and redress the grievance in accordance with law within eight weeks.

FACTUAL SUMMARY

Surendra Pratap Singh filed a writ in the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. and three others, in substance challenging an electricity bill. He had already represented the dispute to the distribution licensee. The Division Bench of Acting Chief Justice V.K. Shukla and Justice Mahesh Chandra Tripathi heard the petition on 20 July 2016. A later correction application of 27 July 2016 substituted the Executive Engineer's office as Tagore Town, Allahabad, in place of Teliarganj, and was treated as part of the original order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-grievance-executive-engineer

HOLDING

A grievance against an electricity bill is to be resolved by the Executive Engineer (Distribution) under clause 6.5 of the Electricity Supply Code, 2005. Where the consumer has already represented, the writ court will not examine the bill on merits and will instead direct the Executive Engineer to look into and redress the grievance in accordance with law (here, within eight weeks). ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Bill grievance already represented; court relegated the consumer to the Executive Engineer (Distribution) under clause 6.5 instead of examining the bill on merits. ¶ 1-2